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File No.: EXP202300532

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On November 30, 2022, a complaint was filed with entry registration number REGAGE22e00054658838 before the Spanish Agency for Data Protection against LEADDESK, S.L. with NIF B88511092 (hereinafter, the complained party). The reasons for the complaint are as follows: The complainant presents a complaint for a commercial call from line ***PHONE.1 on ***DATE.1, to their mobile line ***PHONE.2 registered in the Robinson List service since November 12, 2018.

Along with the notification, the following is provided:

- Certificate of registration of the receiving line in the Robinson List.
- Recording of the call.

SECOND: On January 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

Aire Networks del Mediterráneo SLU, the operator responsible for managing the telephone line ***PHONE.1 indicates that as of November 2022 it was assigned to the following company:

Company name: LEADDESK, S.L.

CIF: B88511092

Postal address: ***ADDRESS.1

On May 10, 2023, this entity was requested to provide information regarding:

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1. Identifying data, company name, postal address, and CIF of the holder of line ***PHONE.1 in November 2022.

2. In case this line has been in use by your entity on that date, you must provide:

- The corporate purpose of your entity
- A copy of the contracts or assignments signed throughout the year 2022 with entities in the energy sector for conducting telephone advertising or managing incidents in the supply
- Details of the data processing carried out by your entity, indicating at least:
 - whether the list of target phones for the campaign or supply incident is provided by entities in the energy sector
 - whether this list is filtered with the Robinson list or if this filtering must be carried out by your entity
 - what processing is carried out with the target phone numbers once the campaign is over.
- A record of calls made to number ***PHONE.2 and details of the purpose of each call.
- The reason for the call made specifically on ***DATE.1

This request is recorded as duly delivered at the entity's headquarters on May 25, 2023, without having provided a response to date.

The request has been reiterated and was delivered on July 6, 2023, and similarly, no response has been provided to the questions raised.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) grants to each control authority, as established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel), and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Lastly, the fourth additional provision "Procedure regarding the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Legality of processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

III

Final provision six, paragraph 2 of the LGTel 11/2022

"The right of end users not to receive unsolicited calls for commercial communication purposes as provided in article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Bulletin." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unsolicited calls for commercial communication made through systems other than those established in article 66.1.a) and to be informed of this right."

IV

Conclusion

The investigations carried out by this Agency indicate that the claimed number belongs to LEADDESK, S.L., as confirmed by the operator responsible for the calling number on the date the call was made. The aforementioned entity has been requested on two occasions to inform about the reason for the commercial call, with the requests having been delivered at the company's headquarters on May 25 and June 6, 2023, without receiving a response from LEADDESK, S.L.

Thus, as it has not been possible to attribute responsibility for the calls made and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to LEADDESK, S.L. and to the complainant.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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